

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2026CLBC064356: DAVID LEIGHTON vs JANE DOE, et al.
09/09/2026 in Department 21
Motion For Limited Contact

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Defendants’ motion for “Limited Contact” with Plaintiff

Tentative Ruling: Defendants’ motion for “Limited Contact” with Plaintiff is DENIED.

The Court shall give notice.

Discussion:

I. Service

The court file does not contain any opposition to this motion. The absence of opposition generally means one of two things: no interested party in the action objects to the request; or one or more interested parties did not receive notice of the request. A review of the court file reveals no proof of service attached to the motion or otherwise filed. Thus, in the absence of evidence to the contrary, this Court must err on the side of concluding that plaintiff’s silence is explained by the absence of notice.

II. Merits of the Motion

As to the merits, the notice of motion is somewhat ambiguous, which presents a challenge in terms of resolution. The notice of motion must state with precision the nature of the relief sought and the grounds therefore. (CCP §1010; CRC 3.1110(a).) In fact, it is a basic tenant of motion practice that the moving party define the issues for the information and attention of the adverse party and the court. (See *Kinda v. Carpenter* (2016) 247 Cal.App.4th 1268, 1277.) In addition to notice, the moving party must provide a supporting memorandum containing “a statement of facts, a concise statement of the law, evidence and arguments relied on, and a

discussion of the statutes, cases, and textbooks cited in support of the position advanced.” (CRC 3.1113; in accord, *Smith, Smith & Kring v. Superior Court* (1997) 60 Cal.App.4th 573, 577-578 [a clear statement of facts must accompany every noticed motion].) The failure to provide an appropriate memorandum may be treated as an admission the motion “is not meritorious.” (CRC 3.1113.) There is no effective memorandum here, adding to the ambiguity.

Defendants appear to be asking for “limited contact” in the form of an order compelling plaintiff to use only the email provided in open court, and a further order appointing to defendants “a pro bono lawyer” who would handle all communications with plaintiff and the Court. The reasons:

“This is to address opposing parties concern that they need to have our true name use and bank information and job information and Social Security information [as] we will be paying through court ... we want to be able to have our due process and present our side of this case with actions that are congruent to being in a breach of contract lawsuit without the actions we do being misunderstood as incongruent.”

The motion filed by defendants here is not expressly supported by any enactment, law or cogent concept. Although the document filed is unclear, trial courts do have leeway to interpret when the interests of justice support doing so. (See CCP §187 [“any suitable process or mode of proceeding may be adopted which may appear most conformable to the spirit of this code”]; Civil Code §3528 [“the law respects form less than substance”]; in accord, *Brown v. Wells Fargo Bank, NA* (2012) 204 Cal.App.4th 1353, 1356 [it is the substance, rather than the label, which controls]; *In re A.N.* (2009) 171 Cal.App.4th 1058, 1064 [document entitled ‘motion to quash’ treated as opposition to Doe amendments]; *Dieckmann v. Superior Court* (1985) 175 Cal.App.3d 345, 359 [“rules of pleading are conveniences to promote justice and not to impede or warp it”].)

The interests of justice are not supported here. There is no right to an appointment of counsel in civil cases. (*Dominguez v. Bonta* (2022) 87 Cal.App.5th 389, 416.) To the extent this is solely about paying the judgment (despite being premature), pursuant to CCP §116.840 *et seq* (in pertinent part):

“At the option of the judgment debtor, payment of the [small claims] judgment may be made to the court in which the judgment was entered ... upon the filing of the request to make payment and the payment to the clerk of the amount of the judgment and any accrued interest and costs after judgment, plus any required fee authorized by this section, the clerk shall enter satisfaction of the judgment and shall remit payment to the judgment creditor.”

So long as the judgment debtor uses the proper Judicial Council form (SC-145), the right to satisfy a small claims judgment through the clerk’s office is ministerial and not actually subject to court “approval” per se. However, it is noted that this is not a small claims case, but rather civil limited (formerly limited UD). There is no equivalent option for paying a civil limited judgment to the court clerk (see CCP §724.010(c)), though arrangements of that nature can be made in the interests of justice. There is no reason to address this issue just yet.

Since the motion was apparently not served, and because it fails to present a cognizable issue for relief, the motion is DENIED on the merits.

The Court will give notice.